TECHNOLOGY ERRORS & OMISSIONS INSURANCE POLICY

NOTICES:

This policy is issued by National Technology Insurance Company, Inc., a captive insurance company domiciled in the State of Utah. This captive insurer is not subject to all of the insurance laws and regulations of your state. State insurance insolvency guaranty funds are not available for this captive insurer.

THIS IS A "CLAIMS-MADE" LIABILITY COVERAGE FORM. It provides coverage for Claims first made against an Insured during the Policy Period (or any applicable Extended Reporting Period). Defense Costs reduce the Limit of Liability (unless otherwise stated) and may be applied against the Retention. Please read the entire Policy carefully.

In consideration of the payment of the premium, and in reliance upon the statements made in the **Application**, which is incorporated into and forms a part of this **Policy**, and subject to all of the terms, conditions, exclusions, and endorsements contained herein, the **Insurer** named in the Declarations and the **Insured** agree as follows:

This **Policy** is a binding legal agreement between the **Named Insured** (sometimes referred to herein as "You" or "Your") and the Insurer (referred to herein as "We," "Us," or "Our"). This **Policy** is issued in accordance with the terms stated below.

GENERAL TERMS AND CONDITIONS

SECTION I: TERMS AND CONDITIONS

Unless a specific **Coverage Part** states otherwise, these General Terms and Conditions apply to all **Coverage Parts**. The provisions of a **Coverage Part** apply only to that **Coverage Part**. If a term, condition, or limitation in a **Coverage Part** conflicts with these General Terms and Conditions, the **Coverage Part** controls that **Coverage Part** alone and does not affect any other **Coverage Part**. Any term defined in a **Coverage Part**, including words shown in **boldface**, has the meaning given in that **Coverage Part** when applied to that **Coverage Part**; otherwise, the definitions in these General Terms and Conditions apply.

SECTION II: DEFINITIONS

1. **Application** means all written or electronic statements, documents, warranties, and information submitted by or on behalf of an **Insured** to the **Insurer** for the purpose of underwriting this **Policy** or any prior policy that this **Policy** renews, replaces, or succeeds, including (i) signed applications and attachments, (ii) materials later provided at the **Insurer's** request, and (iii) public filings, if any, made by or for an **Organization** with the Securities and Exchange Commission during the twelve months preceding inception. The **Application** is deemed attached to and incorporated into this **Policy**.
2. **Change in Control** means:
    1. The merger, consolidation, or combination of the **Named Insured** into another entity such that the **Named Insured** is not the surviving entity; or
    2. The acquisition by any person or entity of more than 50% of the outstanding securities, voting securities, or equity interest of the **Named Insured**.
3. **Control** means either (a) direct or indirect ownership of more than 50 percent of the outstanding voting securities of an entity or (b) the contractual right to elect, appoint, or designate a majority of an entity's directors, trustees, managers, or equivalent governing persons.
4. **Coverage Part** means, to the extent purchased as identified in the Declarations, any of the following coverage sections of this Policy, which may be amended by Endorsement: Directors and Officers Liability, Employment Practices Liability, Fiduciary Liability, Cyber Liability, Technology Errors & Omissions Coverage, and Media Liability Coverage.
5. **Defense Costs** means the reasonable and necessary fees, costs and expenses incurred in the investigation, defense, or appeal of a Claim, including the cost of appeal bonds or similar bonds (without any obligation to furnish such bond on the part of the Insurer). **Defense Costs** shall not include wages, salaries, fees or benefit expenses associated with any **Insured Person** or the **Organization**'s overhead expenses.
6. **Employee** means any natural person:

1. whose labor or service is or was directed by the **Organization** as an employee on a full-time or part-time basis; and
2. solely under this Policy's Employment Practices Liability **Coverage Part**, temporary, seasonal, and leased employees, volunteer workers, and applicants or prospective employees seeking employment with the **Organization**;

but only while the person is acting in such capacity, and shall not include any independent contractors.

7. **ERISA** means the Employee Retirement Income Security Act of 1974, as amended, including its rules and regulations, and any similar law.
8. **Executive** means:
   1. any duly elected or appointed director, officer, member of a management or supervisory board, in-house general counsel, advisory-board member, natural-person general partner, or foreign equivalent of an **Organization**;
   2. the lawful spouse or domestic partner of any of the persons set forth in the above 1. of this definition, but only to the extent the spouse or domestic partner is a party to any **Claim** solely because of his or her status as the spouse or domestic partner of any such person and only for the purposes of any **Claim** seeking damages recoverable from marital community property, property jointly held by any such person and the spouse or domestic partner, or property transferred from any such person to the spouse or domestic partner; and
   3. the estates, heirs, legal representatives, trusts, estate planning vehicles or assigns of any of the persons set forth in 1. of this definition, but only in the event of such person's death, incapacity, or bankruptcy.
9. **Indemnifiable Loss** means **Loss** that the **Organization** is permitted or required to pay to or on behalf of an **Insured Person** under law, corporate charter, bylaws, or written agreement.
10. **Insolvency** means the appointment of a receiver, conservator, liquidator, trustee, rehabilitator, or similar official to manage, supervise, or liquidate an **Organization**, or the **Organization** becoming a debtor in possession within the meaning of the United States Bankruptcy Code or similar legal status under foreign law.

K. **Named Insured** means the legal entity designated in the Declarations as the **Named Insured**.

L. **Non-Indemnifiable Loss** means **Loss** that the **Organization** is neither permitted nor required to pay to or on behalf of an **Insured Person** under law, corporate charter, bylaws, or written agreement.

13. **Organization** means the **Named Insured** and any **Subsidiary**, including any such entity as a debtor in possession within the meaning of the United States Bankruptcy Code or similar legal status under foreign law.
14. **Policy** means, collectively, the General Terms and Conditions, Declarations, all **Coverage Parts** indicated as purchased, and all Endorsements.
15. **Policy Period** means the time period shown in the Declarations, subject to earlier cancellation in accordance with **Policy** terms.

16. **Contaminant** means any solid, liquid, gaseous, biological, thermal or radioactive substance that can irritate, corrupt or harm persons, property, water, air or soil, including by-products and waste.
17. **Regulatory Body** means any federal, state, local or foreign law enforcement or governmental authority or the enforcement unit of any securities exchange or similar self-regulating body.
18. **Related Claims** means all **Claims** based upon, arising out of, or in any way involving the same **Wrongful Acts** or **Related Wrongful Acts**, regardless of the number of claimants, **Insureds**, or proceedings.
19. **Related Wrongful Acts** means any **Wrongful Acts** which have as a common nexus any common fact, circumstance, situation, event, transaction, cause or series of causally related facts, circumstances, situations, events, transactions, or causes.
20. **Senior Executive** means the Chief Executive Officer, Chief Financial Officer, President, Chief Operating Officer, or General Counsel (or any individual serving in an equivalent position) of the **Organization** or any person who signed the **Application**.
21. **Subsidiary** means any entity over which the **Named Insured** has **Control**, including any not-for-profit entity exclusively controlled by the **Named Insured**.

SECTION III. LIMITATIONS OF LIABILITY

1. **Policy Limit of Liability** – The Policy Limit of Liability stated in the Declarations is the maximum amount We will pay under this **Policy** for all **Loss** covered by all **Coverage Parts** combined.
    1. Any **Loss** paid under one **Coverage Part** shall reduce the remaining Policy Limit of Liability available for **Loss** under all other **Coverage Parts**.
    2. If a single **Claim** is covered under multiple **Coverage Parts**, the most We will pay for that Claim will not exceed the highest single **Coverage Part** limit applicable to that **Claim**.
2. **Coverage Part Aggregate Limit of Liability** – Subject to the Policy Limit of Liability, any **Coverage Part** Aggregate Limit of Liability stated in the Declarations is the most We will pay under the respective **Coverage Part** for all **Claims** covered under that **Coverage Part**. Each **Coverage Part's** Aggregate Limit of Liability is part of, and not in addition to, the Policy Limit of Liability.
3. **Coverage Limits of Liability** – Subject to the Policy Limit of Liability and any applicable **Coverage Part** Aggregate Limit of Liability, each Coverage Limit of Liability stated in the Declarations for an Insuring Agreement is the maximum we will pay under that respective Insuring Agreement.
4. **Sublimits of Liability** – Any Sublimit of Liability, if any, stated in the Declarations is the most We will pay for all **Loss** that is subject to that Sublimit. Each such Sublimit is part of, and not in addition to, the applicable **Coverage Part** Limit of Liability and the **Policy** Limit of Liability.

5. **Defense Costs** – **Defense Costs** are part of, and not in addition to, the Limits of Liability applicable to each **Coverage Part**. Payment by Us of **Defense Costs** will reduce and may exhaust the applicable Limit of Liability.
6. **Exhaustion of Limits** – If any applicable Limit of Liability under this **Policy** is exhausted by the payment of **Loss**, our obligations under this **Policy** (including, without limitation, any duty to defend) shall be completely fulfilled and extinguished. We are entitled to pay **Loss** as it becomes due and payable, without consideration of any other future potential payment obligations under this **Policy**.

SECTION IV. COVERAGE TERRITORY

This **Policy** applies to **Claims** on a worldwide basis unless otherwise stated in a particular **Coverage Part**, and always subject to applicable law and sanctions. All premiums, Limits of Liability, Retentions, **Loss**, or other amounts under this **Policy** are expressed and payable in the currency of the United States of America (U.S. dollars). If any judgment, settlement, or other element of **Loss** under this **Policy** is stated in a currency other than U.S. dollars, payment under this **Policy** shall be made in U.S. dollars at the rate of exchange published in *The Wall Street Journal* on the date the final judgment is entered, the settlement amount is agreed upon, or the other element of **Loss** becomes due.

However, this **Policy** will not apply in any country or territory where such application would violate the laws of the United States. This includes, but is not limited to, any country or region that is subject to U.S. economic or trade sanctions or export control laws administered by the U.S. Treasury Department's Office of Foreign Assets Control (OFAC) or other applicable U.S. government agencies.

SECTION V. RETENTIONS

1. Our liability to pay **Loss** on account of any **Claim** shall apply only to that part of the **Loss** which is in excess of the applicable Retention amount stated in the Declarations. We will have no responsibility to pay any **Loss** until the applicable Retention has been fully satisfied. You shall be responsible for payment of the Retention, which shall remain uninsured. Payment of any Retention shall not reduce the Limits of Liability under this **Policy**.
2. If a single **Claim** (including any **Related Claims**) is covered in whole or in part under more than one **Coverage Part**, the Retention applicable to each **Coverage Part** will apply to the **Loss** covered under that **Coverage Part**. However, the sum of all Retentions applicable to such **Claim** shall not exceed the largest applicable Retention among the **Coverage Parts** involved.
3. If any covered **Loss** within an applicable Retention is paid on behalf of an Insured (including on behalf of an Insured Person) by any source other than You, such payment will erode or reduce the Retention to the extent of that payment. This includes payments made under another valid insurance policy (such as a Side-A Difference-In-Conditions policy specifically excess of this **Policy**).
4. No Retention shall apply to **Non-Indemnifiable Loss**.

SECTION VI. RELATED CLAIMS

All **Related Claims** shall be deemed to be one single **Claim** for the purposes of this **Policy**. Such **Claim** shall be deemed first made on the date the earliest of the **Related Claims** was first made against any **Insured**, regardless of whether that date falls before, during, or after the **Policy Period**. In no event shall a single lawsuit or proceeding be treated as more than one **Claim**, even if it involves multiple claimants or causes of action or alleges multiple or different **Wrongful Acts**.

SECTION VII. EXTENDED REPORTING PERIOD

1. **Automatic Extended Reporting Period:** No automatic extended reporting period applies under this **Policy**. Coverage for **Claims** first made after the end of the **Policy Period** is available only if the **Named Insured** elects to and purchases an Optional Extended Reporting Period pursuant to Section VII.B.
2. **Optional Extended Reporting Period:**
    1. If any **Coverage Part** is cancelled or not renewed by Us or by You, then You shall have the right to purchase an Optional Extended Reporting Period for that **Coverage Part**, which will begin immediately after the effective date of cancellation or nonrenewal. This Optional Extended Reporting Period (if purchased) will extend the time period during which you may report **Claims** to us under the cancelled/non-renewed **Coverage Part**, but only for **Claims** arising from **Wrongful Acts** that occurred entirely prior to the effective date of cancellation or nonrenewal.
    2. The available durations (time periods) for the Optional Extended Reporting Period and the additional premium amounts for each are set forth in the Declarations. To exercise this right, you must provide written notice to us of your election and pay the applicable additional premium within 60 days after the effective date of cancellation or nonrenewal. Once 60 days have passed after the cancellation or nonrenewal, the right to purchase the Optional Extended Reporting Period for that **Coverage Part** expires.
    3. If an Optional Extended Reporting Period is purchased, the entire additional premium for it shall be deemed fully earned at the inception of the Optional Extended Reporting Period. The Optional Extended Reporting Period cannot be cancelled by either You or Us after it has been activated (except in the event that the **Policy** is reinstated or renewed without a lapse in coverage).
    4. The Optional Extended Reporting Period does not increase the Limits of Liability under this **Policy**. The available Limits of Liability for **Claims** reported during any Extended Reporting Period are those remaining under the **Policy** (and applicable **Coverage Part**) as of the end of the Policy Period, and **Loss** paid towards **Claims** falling within the Extended Reporting Period erode and may exhaust the applicable Limits of Liability.
    5. Except as otherwise provided in **SECTION IV. RELATED CLAIMS**, a **Claim** first made against an Insured during any Optional Extended Reporting Period and properly reported to us in accordance with the **Policy** shall be deemed to

have been made on the last day of the Policy Period, provided the Claim arises from a Wrongful Act occurring prior to the effective date of cancellation or nonrenewal.

SECTION VIII. DEFENSE OF CLAIMS AND SETTLEMENT

1. **Duty to Defend:** We will and have the right and duty to defend any **Claim** against an **Insured**, even if the allegations in such **Claim** are groundless, false or fraudulent. This duty to defend applies only to **Claims** covered by one or more **Coverage Parts** of this **Policy** and shall cease when the applicable Limit of Liability (whether a **Coverage Part** limit or the **Policy** Limit) has been exhausted by payment of Loss.
2. **Cooperation, Settlement and Consent:**
    1. **Insured's Duty to Cooperate:** The **Insureds** agree that they will not admit or assume any liability, voluntarily enter into any settlement agreement, stipulate to any judgment, or incur any **Loss** without Our prior written consent, with such consent not to be unreasonable withheld. We shall not be liable for, nor bound by, any settlement, assumed obligation, admission of liability, or **Defense Costs** to which We have not agreed in writing. However, if you are able to settle a **Claim** for an amount (including **Defense Costs**) that does not exceed the applicable Retention, our consent is not required for that settlement. In that event, You must promptly notify Us of the resolution of the **Claim** and provide details of the settlement.

       The **Insureds** agree to cooperate with Us in the investigation, defense, and settlement of any **Claim**. The **Insureds** further agree to provide Us any such information, assistance, and cooperation as We or defense counsel may reasonably request.
    2. **Insurer's Right to Settle:** We shall have the right to investigate any **Claim** and to make any settlement offer we deem appropriate in a **Claim**, but we will not commit to any settlement without the consent of the **Insured**, such consent not to be unreasonably withheld.
    3. **Consequences of Refusal to Consent (Hammer Clause):** If We recommend a settlement of a **Claim** within the remaining applicable Limit of Liability and the **Insured** does not consent to such settlement, our liability for that **Claim** shall not exceed the amount for which the **Claim** could have been settled, plus **Defense Costs** incurred up to the date that the **Insured** refused consent. In such case, We will have the right to withdraw from the further defense of the **Claim**, and you shall assume the defense of the **Claim** at your own cost. Our obligation to pay any further **Loss** for that **Claim** will cease once We have paid the amount of the proposed settlement (plus **Defense Costs** incurred up to the refusal date), subject to the applicable Limit of Liability.

SECTION IX. NOTICE OF CLAIMS AND POTENTIAL CLAIMS

1. **Notice of Claims:** As a condition precedent to coverage under this Policy, the Insured (or the Named Insured on behalf of any Insured) must give written notice to us of any Claim made against an Insured as soon as practicable after a **Senior Executive** first becomes aware of the **Claim**. In all events, such notice of Claim must be given no later than ninety (90) days after the end of the **Policy Period** (or within any applicable Extended Reporting Period).
2. **Effect of Late Notice:** If the Insured fails to give notice of a Claim as soon as practicable as required in IX.A above, such failure shall not invalidate coverage for the Claim **unless** we demonstrate that we have been materially prejudiced by the late notice. In other words, we will not deny coverage based solely on a failure to give prompt notice, except to the extent that the delay has caused us actual material prejudice in our ability to defend or respond to the Claim.
3. **Notice of Circumstances (Potential Claims):** If during the Policy Period (or any applicable Extended Reporting Period) an Insured first becomes aware of any specific Wrongful Act, fact, or circumstance that could reasonably give rise to a future Claim, the Insured may provide written notice to us of such circumstances. If such notice is given to us during the Policy Period (or Extended Reporting Period), then any Claim that is subsequently made against an Insured arising from those reported circumstances shall be deemed to be a Claim first made during this Policy Period (on the date we received the notice of circumstances). We will treat any such subsequent Claim as if it had been reported at the time of the original notice of circumstances.
4. **Contents of Notice of Circumstances:** If you choose to report circumstances that may give rise to a Claim, you should include the following information in your notice (to the extent known):
    1. A description of the specific Wrongful Act(s) or alleged wrongful conduct at issue, and the circumstances in which it occurred or is suspected to have occurred;
    2. The nature of any potential or alleged damage or injury that may result from such circumstances;
    3. The identities of any potential claimants (persons or entities likely to bring a Claim) and any Insureds known to be involved in or affected by the matter; and
    4. The manner in which you first became aware of the Wrongful Act, fact, or circumstance (including the date it came to your attention).
    5. Providing as much detail as possible will help establish any later Claim as relating back to this notice of circumstances.
5. **Notices from Insurer to Insured:** Any notices required to be given by us to you (such as notice of cancellation or non-renewal, if applicable) shall be sent in writing to the Named Insured at the address specified in the Declarations, or to any updated address of record provided to us in writing. Such notice will be effective upon mailing or electronic transmission by us to that address.
6. **Optional Notice Provisions:** If any Coverage Part of this Policy provides that you **may** (but are not required to) provide notice of an incident, event, or potential claim to us (sometimes called a “notice of circumstance” or similar provision), your decision not to give such optional notice will not prejudice your right to coverage for a Claim arising from

the incident or event at a later date. In other words, if a Coverage Part permits but does not require early notice of a potential Claim, the failure to exercise that option will not, in itself, prevent you from obtaining coverage for a related Claim, provided that the Claim is reported in accordance with the terms of this Policy (or any renewal or replacement of this Policy).

SECTION X. COOPERATION

You (as identified in the Application or Endorsements) agree to provide us with all information, assistance, and cooperation which we may reasonably request in connection with any Claim, potential Claim, or circumstance notified under this Policy. This includes assisting in the investigation, defense, and settlement of Claims, attending hearings and trials, securing and giving evidence, obtaining the attendance of witnesses, and conducting negotiations. In the event of any Claim, you further agree not to do anything that could intentionally prejudice our position or our potential or actual rights of recovery.

The failure of any one Insured to cooperate with us as required by this section shall not be imputed to any other Insured. No Insured shall be denied coverage under this Policy solely because of the failure of another Insured to give notice or to cooperate with the investigation and defense of a Claim.

SECTION XI. ALLOCATION

If, in any Claim, an Insured incurs both covered Loss and uncovered loss (because some of the allegations or causes of action in the Claim are covered by this Policy and others are not, **or** because the Claim includes both Insured parties and others who are not insured under this Policy), we will allocate the Loss between covered and uncovered amounts as follows:

1. **Defense Costs:** 100% of Defense Costs incurred in defending a Claim will be considered covered Loss, and we will pay Defense Costs in full (excess of any applicable Retention) to defend the entire Claim, even if the Claim includes matters or parties not covered. We reserve the right to later reallocate Defense Costs in the event it is finally determined that certain Defense Costs were incurred exclusively in relation to non-covered matters, but we will advance Defense Costs for the entire Claim pursuant to Clause VIII.A., pending any such determination.
2. **Other Loss:** Loss other than Defense Costs (including damages, settlements, judgments, and awards) shall be allocated between covered Loss and uncovered loss based on the relative legal exposure and financial exposure of the parties to the covered and uncovered matters. This allocation will take into account the extent to which any covered Wrongful Acts and any uncovered conduct or parties contributed to the Loss amount.

We and you shall use our best efforts to agree upon a fair and proper allocation of Loss. If we and you cannot agree on the allocation, we will, until a final allocation is agreed upon or determined, advance the portion of the Loss which we believe in good faith to be covered under this Policy (subject to applicable limits of liability). The allocation of Loss (if disputed) may be determined by mediation, arbitration, or a final judgment or decision of a court or other adjudicative body.

SECTION XII. COORDINATION OF COVERAGE

If a single Claim gives rise to Loss that is covered under more than one Liability Coverage Part, the Claim will be treated as one loss event. We will pay only once for that Loss, and our total payment will not exceed the smallest of:

1. the actual amount of Loss;
2. the sum of the available Limits of Liability for each applicable Coverage Part that does **not** share a combined limit; or
3. the combined Limit of Liability shown in the Declarations for any applicable Coverage Parts that share such a limit.

The overall Policy Limit of Liability always applies. Allocation of the payment between Coverage Parts is for accounting purposes only and does not increase our total obligation.

Special Provision for Insured Person Loss: Notwithstanding the order of coverage above, if a single Claim includes any **Non-Indemnifiable Loss** of an Insured Person (for example, Loss of an Insured Person that the Organization is neither permitted nor able to indemnify), we will first pay such Loss on behalf of the Insured Person under the Management Liability Coverage Part (Directors & Officers Liability, Insuring Agreement A.1 for individual Insured Persons), until the limit of that Coverage Part is exhausted. Only then (if Loss remains) will we proceed to make payments under the other Coverage Parts in the order stated above for any remaining Loss.

SECTION XIII. CHANGES IN EXPOSURE

1. **Change in Control (Transactions Involving the Named Insured):** If during the Policy Period any of the following events occurs:
    1. The Named Insured merges into or consolidates with another entity such that the Named Insured is not the surviving entity; **or** any person, entity or group of affiliated persons/entities acquires ownership of more than 50% of the outstanding voting securities of the Named Insured (representing the present right to vote for the election of directors or equivalent management positions of the Named Insured);
    2. The Named Insured sells more than 50% of its assets to any person or entity (or group of persons or entities acting in concert);
    3. The Named Insured completes an initial public offering of its securities, or effects a reverse merger into a publicly traded entity, such that the Named Insured becomes a publicly held company; **or**
    4. The Named Insured becomes a Debtor in Possession, or an administrator, receiver, conservator, liquidator, trustee or similar official is appointed to supervise, manage, or take control of the Named Insured (including the point at which the Named Insured emerges from bankruptcy protection),

    (each of the above being a **Change in Control**), then you must give written notice to us of such Change in Control as soon as practicable, but in no event later than 60 days after the effective date of the transaction or event. Upon a Change in Control, coverage under all Coverage Parts shall continue in force until the end of the Policy Period, but only with respect to Claims for Wrongful Acts (or, where applicable, other covered

events) that occur entirely **before** the effective date of the Change in Control. No coverage shall be available under this Policy for any Wrongful Act, error, omission, or other event occurring on or after the effective date of the Change in Control.

After a Change in Control, the entire remaining premium for this Policy shall be deemed fully earned as of the date of the transaction (meaning no refunds shall be due). You shall have the right, within 60 days of the Change in Control, to request an extension of coverage for the run-off period specified in the Declarations (the **Run-Off Coverage Period**). This Run-Off Coverage, if purchased, will extend the reporting period under this Policy (for the affected Coverage Parts) to allow Claims to be reported during the Run-Off Coverage Period, but only for covered Wrongful Acts (or other covered events) that occurred prior to the effective date of the Change in Control. We will issue a Run-Off endorsement providing such Extended Reporting Period if you elect it and pay the additional premium stated in the Declarations for the Run-Off Coverage. The Run-Off Extended Reporting Period (if purchased) shall begin on the day immediately following the effective date of the Change in Control. If a Run-Off Extended Reporting Period is purchased pursuant to this section, no separate Extended Reporting Period under section VII above will apply for the affected Coverage Parts.

2. **Acquisition or Creation of a Subsidiary (or New Plan):** If, before or during the Policy Period, the Organization (i) acquires Control of an entity (by acquiring more than 50% of its voting securities or by acquiring substantially all of its assets), **or** (ii) creates or acquires a new Subsidiary, **or** (iii) creates or acquires a new Plan subject to the Fiduciary Liability Coverage Part, then such newly acquired or created organization or Plan shall automatically be covered under this Policy, but only for Wrongful Acts (or covered conduct) taking place after the effective date of such acquisition or creation.

   However, if the assets or revenues of any acquired entity exceed 10% of the total consolidated assets or revenues of the Named Insured (as reflected in the Named Insured's most recent audited financial statements as of the inception of this Policy), you must provide written notice of the acquisition to us as soon as practicable (but no later than 90 days after the effective date of the acquisition or creation). We reserve the right to impose additional or different terms, conditions, and/or to charge a reasonable additional premium as a condition of extending coverage to such large acquisition or newly formed entity beyond the initial 90-day period. Coverage for any such acquired entity or created Subsidiary beyond 90 days from the transaction is contingent upon your agreement to any additional terms and payment of any required premium. If agreement on terms or premium cannot be reached, coverage for the new entity may cease after 90 days from the acquisition.

   This section XIII.B does not apply to any Claim based upon or arising out of any Wrongful Act (or **Related Wrongful Acts**) that occurred in whole or in part **before** the date the new entity became a Subsidiary or was merged or consolidated with the Organization. In addition, no coverage shall apply to Loss arising from any act, error, or omission of the new entity or its Insured Persons that occurs after the date of acquisition but is related to acts or omissions that took place before the acquisition. (Such prior acts

or related acts may be considered for coverage under a separate policy or endorsement, if available and negotiated with us.)

3. **Loss of Subsidiary Status (Sale or Divestiture):** If any organization ceases to be a **Subsidiary** before or during the Policy Period (for example, due to sale, dissolution, or other divestiture such that the Named Insured no longer maintains Control of that entity), then coverage under this Policy for such entity and its Insured Persons shall continue but only for Claims for Wrongful Acts that occurred entirely during the time that entity was a Subsidiary. In other words, after the date the entity ceases to be a Subsidiary, no coverage shall apply under this Policy for any new Wrongful Acts (or other covered events) by that entity or its Insured Persons.

If a Plan insured under the Fiduciary Liability Coverage Part is terminated before or during the Policy Period, coverage for such Plan (and any Insureds in their fiduciary capacities with respect to that Plan) will continue in force until the expiration of the Policy Period (or earlier termination of the Fiduciary Liability Coverage Part), but only for Wrongful Acts or breaches of fiduciary duty that occurred prior to the date the Plan was terminated. Thereafter, no coverage under this Policy shall apply for acts, errors or omissions in the administration or management of the terminated Plan, except to the extent an Extended Reporting Period applies.

SECTION XIV. APPLICATION (REPRESENTATIONS AND SEVERABILITY)

You (the Insureds) represent and acknowledge that the statements and information contained in the **Application** for this Policy are true, accurate, and complete, and that we have issued this Policy in reliance upon the truth and accuracy of those representations. The Application (and all written materials submitted or created as part of the underwriting process, including any warranties or supplemental information provided to us) is deemed to be incorporated into and constituting a part of this Policy.

If the Application contains any misrepresentation or omission of a material fact, and if such misrepresentation or omission materially affected either the acceptance of the risk or the hazard assumed by us, then no coverage shall be afforded under this Policy for any Claim involving any Insured who knew, as of the inception date of this Policy, the facts that were not truthfully disclosed in the Application. The foregoing applies whether or not the particular Insured actually knew that the Application contained such misrepresentation or omission. For purposes of determining the application of this provision:

1. Knowledge of any fact or omission by one Insured Person (including any Insured Person) shall not be imputed to any other Insured Person. No Insured Person shall be denied coverage based on a misrepresentation in the Application, unless that individual actually knew the Application was untrue with respect to the material facts at issue.
2. Only the knowledge of a **Senior Executive** shall be imputed to the **Organization**. Thus, the **Organization**'s coverage (and any coverage for its **Plans**) will be excluded due to a misrepresentation or omission in the **Application** only if a **Senior Executive** knew the true facts that were not disclosed. Knowledge of any other **Insured Person** who is not also a **Senior Executive** will not be imputed to the **Organization**.

In no event will we **rescind** or void this Policy in its entirety based on misrepresentations in the Application. However, this provision does not prevent us from denying or limiting coverage as to a specific Insured or Claim if the circumstances so warrant, as provided above. This Policy is non-rescindable by us after inception for any reason other than non-payment of premium.

SECTION XV. ACTION AGAINST THE INSURER

No claimant or other party may include the Insurer in any Claim filed against an Insured, and an Insured may not join, implead, or otherwise bring the Insurer into such a proceeding as a third party.

No action at law or in equity may be brought against the Insurer to recover under this Policy unless, as conditions precedent: (i) the Insured has fully complied with every term and condition of the Policy, and (ii) the Insured's liability for Loss has been fixed by a final, non-appealable judgment or by a written settlement signed by the Insured, the claimant, and the Insurer.

For coverage written on a first-party basis—including any coverage under the Cyber Coverage Part for a Data Incident or other direct loss—no action may be taken against the Insurer unless all Policy terms have been met, including timely notice. The Insured must wait at least ninety (90) days after submitting a sworn proof of loss with full particulars before starting any action, and any such action must be brought within two (2) years after the Insured first discovered the event or loss, unless a longer period is required by law.

Nothing in this clause grants a third party any right to sue the Insurer directly except as provided by applicable law; it governs only actions brought by an Insured under this Policy.

SECTION XVI. ASSIGNMENT

No change, modification, or assignment of interest under this Policy shall be valid unless made by a written endorsement issued by us and expressly made part of this Policy. This Policy (and any rights or interests hereunder) may not be assigned by any Insured without our prior written consent, which may be granted or withheld in our sole discretion. Any assignment made without our written consent shall be null and void as to us.

SECTION XVII. NAMED INSURED'S AUTHORITY

By acceptance of this Policy, the Named Insured is authorized to act on behalf of all Insureds with respect to all matters regarding this Policy. In particular (but without limitation), the Named Insured will act on behalf of all other Insureds for the purposes of: giving and receiving notices (including notice of cancellation or nonrenewal), paying premiums and receiving any return premiums, electing or declining any Extended Reporting Period or other optional coverages, endorsing the Policy, consenting to any settlement (to the extent such consent is required from an Insured), and otherwise managing or administering this Policy. All Insureds agree that the Named Insured shall be the sole agent for and represent all Insureds in such matters.

SECTION XVIII. CANCELLATION

1. **By Us (Non-Payment of Premium):** We may cancel this Policy or any Coverage Part **only** for non-payment of premium. In the event we must cancel for non-payment, we will provide written notice to the Named Insured at least twenty (20) days (or such longer period as may be required by applicable law) before the effective date of cancellation. The notice will state the effective date of cancellation, and the Policy Period shall terminate on that date if the premium remains unpaid. If you remit the full premium owed during the notice period, the cancellation shall not take effect and coverage will continue uninterrupted. (Except for non-payment of premium, we will not cancel this Policy during the Policy Period.)
2. **By You (Named Insured):** The Named Insured may cancel this Policy or any Coverage Part by giving us prior written notice of the desired cancellation date. The cancellation will be effective on the date we receive your notice (unless a later date is specified by you). If the Named Insured cancels the Policy, we will refund any unearned premium on a pro-rata basis for the unused portion of the Policy Period. Our tender of any return premium is not a condition precedent to the effectiveness of cancellation, but will be made as soon as practicable after cancellation.
3. **Non-Renewal:** If we elect not to renew this Policy (or a specific Coverage Part), we will provide the Named Insured with no less than sixty (60) days advance notice of non-renewal prior to the expiration of the Policy Period (or such notice period as required by state law). The notice will be sent to the Named Insured's address shown in the Declarations (or the last known address on file) and will include the reason for non-renewal if required by law.

SECTION XIX. BANKRUPTCY OR INSOLVENCY

The bankruptcy, insolvency, receivership or dissolution of any Insured (including any Organization or any Insured Person) shall not relieve us of our obligations under this Policy. In the event a liquidation or reorganization proceeding is commenced by or against the Organization (under federal bankruptcy law or any similar law), the Organization and the Insureds agree to waive and release any automatic stay or injunction which may apply in such proceeding to this Policy or any proceeds of this Policy. The Insureds further agree that, if requested by us, they will cooperate in obtaining relief from any such stay or injunction to allow the investigation, defense, settlement, payment, or advancement of Loss under this Policy.

SECTION XX. REFERENCES TO LAWS

Any statute, act, or code mentioned or referenced in this Policy (including in any endorsement) is deemed to include all amendments to such laws and all rules or regulations promulgated under such laws. If a statute, act, or code is mentioned in this Policy and is followed by the phrase "or any similar law," it shall be construed to include any similar federal, state, local or foreign law, common law, or regulation that is comparable in intent or effect to the cited law.

SECTION XXI. MOST FAVORABLE JURISDICTION FOR CERTAIN DAMAGES

Certain types of damages, fines, or penalties may not be insurable under some laws. It is the intent of this Policy to afford coverage to the fullest extent permitted by law for punitive, exemplary, and multiplied damages, and for civil fines and penalties, to the extent such matters

constitute Loss under the Policy. Accordingly, the insurability of such damages, fines or penalties shall be determined under the internal laws of any applicable jurisdiction that most favors coverage for the Insured for such damages or penalties. This means that if any jurisdiction connected to the Claim, the Insured, the Policy, or the Insurer permits insurance coverage for punitive, exemplary, or multiplied damages (or for specific statutory fines or penalties), then that jurisdiction's law may be applied (at the Insured's request) in determining the insurability of those amounts, even if the Claim is brought elsewhere.

Specifically, with respect to:

1. any judgment or award that includes punitive, exemplary, or multiplied damages;
2. any civil fine or penalty assessed against an Insured Person pursuant to Section 2(g)(2)(B) of the U.S. Foreign Corrupt Practices Act (15 U.S.C. §78ff) or Section 308(a) of the Sarbanes-Oxley Act of 2002 (15 U.S.C. §7246(a)), or any similar statutory penalty; **and**
3. any other matters which are uninsurable under the law that governs this Policy,

the issue of insurability shall be resolved by reference to the applicable law that most favors coverage for such Loss. We will not contend that such damages, fines, penalties or other Loss is uninsurable under this Policy except to the extent that it is uninsurable under **any** applicable law that has a significant connection to the Claim or to the Insured seeking coverage.

SECTION XXII. ADDITIONAL CONDITIONS

1. **Changes to the Policy:** Notice to or knowledge possessed by any agent, broker, or other person shall not effect a waiver or change in any part of this Policy, nor prevent us from asserting any right under the terms of this Policy. This Policy can only be changed, modified, or waived by a written endorsement issued by us and made a part of this Policy. No representative of the Insurer is authorized to make or agree to any alteration to the Policy except by formal endorsement.
2. **Titles and Headings:** The titles, headings, and captions in this Policy (including any endorsements) are included for convenience or reference only. They are not part of the terms of the insurance contract and shall not be considered in determining the meaning or effect of any provisions of this Policy.
3. **Premium and Adjustments:** You, as the Named Insured, agree to pay all premiums due for this Policy to us or to our authorized agent in accordance with the terms of the invoice or billing statement. The premium amount stated in the Declarations is the minimum premium for the Policy Period. If during the Policy Period there are changes in exposure or coverages that materially increase our risk (such as the acquisition or creation of a new Subsidiary, a merger, an Initial Public Offering, or the addition of new Coverage Parts or Insuring Agreements by endorsement), we reserve the right to adjust the premium during the Policy Period or upon renewal. Any additional premium charge or return premium due as a result of such changes will be calculated in accordance with our rules and rates. The Named Insured agrees to pay any additional premium reasonably required for an increase in exposure or coverage, and we will refund any return premium due for a decrease in exposure or elimination of coverage, pro rata for the time such coverage was not provided.

4. **Choice of Law and Forum:** This Policy, including its construction, application, and validity, shall be governed by the internal laws of the state specified in the Declarations as the principal address of the Named Insured. Any disputes involving this Policy shall be resolved in accordance with the laws of that jurisdiction, without regard to its conflict-of-law principles. (If no state is specified, or if the Named Insured's address is outside the United States, then the law of the State of New York shall apply.) Unless otherwise agreed by the parties, any litigation concerning this Policy shall be brought in a competent court in the chosen jurisdiction whose law applies.
5. **Other Insurance:** This Policy responds only after every other valid and collectible insurance that covers the same Loss, unless that other insurance is expressly written to be excess of this Policy and cites this Policy's form number. If a policy you purchased for the same risk covers the Loss, this Policy will apply strictly in excess of that policy's limits or, at the Insurer's sole option, on a primary basis with the right to seek contribution from the other insurer. The Insurer's payment will not exceed the proportion that this Policy's Limit of Liability bears to the combined limits of all insurance available for the Loss.

Further, if any Claim or Loss covered under this Policy is also covered, in whole or in part, under one or more other policies issued by us (or any member company or affiliate of ours) to any Insured, our maximum aggregate liability under all such policies combined shall not exceed the largest single available limit of liability under any one of those policies. This means that you cannot recover more than once from us for the same Claim or Loss. The coverage provided under multiple policies issued by us for the benefit of an Insured shall not be duplicated or stacked. Any amounts paid under one such policy will reduce the limits available under the other policy (or policies) issued by us for the same Loss, and we may choose which policy or policies will respond.

(The above Other Insurance clause does not apply to insurance policies specifically arranged to be excess of this Policy, such as an excess Side-A DIC policy, nor will it operate to dilute or impair such excess insurance. It is intended to prevent double recovery or the unintended stacking of limits where the Insured has multiple policies from the same insurer covering overlapping risks.)

SECTION XXIII. COMMON EXCLUSIONS – APPLICABLE TO ALL LIABILITY COVERAGE PARTS

We shall not be liable to pay any Loss (including Defense Costs) in connection with any Claim made against any Insured under any Liability Coverage Part of this Policy:

1. **Profit or Fraud:** To the extent the Claim is brought about or contributed to by: (a) an Insured gaining any personal profit, financial advantage, or other remuneration to which they were not legally entitled; **or** (b) the deliberate fraudulent act or criminal act of any Insured. However, this exclusion shall not apply unless and until there is a final, non-appealable adjudication in the underlying proceeding establishing that such conduct occurred. (For example, this exclusion will not apply until a trial court judgment or other final adjudication finds that an Insured committed deliberate fraud or obtained an illegal profit, and that judgment is no longer subject to appeal.)

2. **Prior Notice / Prior Claim:** Based upon, arising out of, or in any way involving any Wrongful Act or any fact, circumstance or situation which has been the subject of any notice of claim or potential claim given before the inception of this Policy under any other insurance policy or coverage part of which this Policy is a direct or indirect renewal or replacement. In other words, if you have given notice of a claim or circumstance to a prior insurer (or under a prior policy issued by us) before the start of this Policy Period, any continuation of that matter is excluded from coverage under this Policy.
3. **Known Wrongful Acts (Prior Knowledge):** Based upon, arising out of, or in any way involving any Wrongful Act (or Interrelated Wrongful Act) that any **Senior Executive** of the Organization was aware of prior to the **Prior Acts Date** stated in the Declarations (or, if no Prior Acts Date is specified, prior to the inception date of the applicable Coverage Part), if such **Senior Executive** had reason to believe at that time that such Wrongful Act could reasonably be expected to result in a Claim. This exclusion applies only with respect to an Insured who had such knowledge or reason to believe. It will not apply to any other Insured who did not have such knowledge (see Imputation clause below).
4. **Prior & Subsequent Subsidiary Acts:** Based upon, arising out of, or in any way involving:
    1. any Wrongful Act actually or allegedly committed **before** the effective date that any entity became a **Subsidiary** (or before the effective date of a merger or consolidation in which the Organization is the surviving entity), if such Claim is made against an Insured in their capacity as an Insured of that entity;
    2. any Wrongful Act actually or allegedly committed **on or after** the effective date an entity became a Subsidiary (or was merged with the Organization) if such Wrongful Act, **together with** a Wrongful Act committed or allegedly committed before the date the entity became a Subsidiary or was merged, would constitute **Related Wrongful Acts**; **or**
    3. any Wrongful Act actually or allegedly committed **after** the date an entity ceases to be a Subsidiary, if such Claim is made against an Insured in their capacity as an Insured of that former Subsidiary.

    (This exclusion ensures that we do not insure, under this Policy, conduct of an acquired entity that took place prior to acquisition (or conduct after acquisition that is continuous of pre-acquisition conduct), or conduct of an entity after it has been sold or dissolved. Coverage for such acts would need to be negotiated separately.)

5. **Contamination:** Based upon, arising out of, or in any way involving any actual, alleged, or threatened discharge, dispersal, release, escape, seepage, migration, or emission of Contaminants into or on real or personal property, water, air, or any other environmental medium; **or** any direction or request to test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize Contaminant. "**Contaminats**" includes, but is not limited to, any solid, liquid, gaseous or thermal irritant or pollutant, smoke, vapor, soot, fumes, acids, alkalis, chemicals, hazardous substances, waste, biological or infectious agents, mold,

fungi, spores, electromagnetism, nuclear materials, radiation, or any other substance defined by environmental law as a pollutant or contaminant.

Imputation and Severability of Exclusions: For purposes of determining the applicability of the above exclusions, no Wrongful Act, knowledge, or state of mind of any Insured Person will be imputed to any other Insured Person. Only the Wrongful Acts, knowledge, or conduct of a past, present or future Chief Executive Officer or Chief Financial Officer of the Named Insured shall be imputed to the **Organization** (and only for purposes of determining if an exclusion applies to claims against the Organization).

Where an exclusion above requires a final adjudication in the underlying proceeding (such as the Profit/Fraud exclusion), we will provide defense coverage for Insureds until such time as the required adjudication establishes that the exclusion applies, subject to the terms and conditions of this Policy. If any Insured is exonerated from the allegations or conduct at issue, this Policy will continue to provide them coverage to the extent of its terms.

TECHNOLOGY ERRORS & OMISSIONS COVERAGE

SECTION I: INSURING AGREEMENTS

Coverage – Technology Errors & Omissions: We agree to pay on behalf of the **Insured** all **Loss** resulting from a **Claim** first made against the **Insured** during the **Policy Period** (or any Extended Reporting Period) for a **Wrongful Act** and reported to us in accordance with Section IX. of this **Policy**'s General Terms and Conditions.

SECTION II: DEFINITIONS

1. **Claim** means:
    1. a written demand for monetary or non-monetary or injunctive relief against any an **Insured**; or
    2. a civil proceeding, arbitration, or alternative dispute resolution proceeding initiated against an **Insured**.

Claim does not include any investigation or criminal or regulatory proceeding.

2. **Loss** means the amount that an **Insured** becomes legally obligated to pay as a result of a **Claim**, including compensatory damages, settlements, judgments, prejudgment or post-judgment interest, statutory attorney fees pursuant to a covered judgment against an **Insured**, punitive or exemplary damages, and **Defense Costs**, except to the extent any such amounts are uninsurable as a matter of applicable law.

Loss does not include:

1. the cost of providing non-monetary or injunctive relief, including but not limited to the cost to correct, re-perform, or complete any **Technology Services** or the cost to recall, repair, replace, withdraw or remove any **Technology Product**;

2. taxes or the loss of tax benefits, fines, or penalties;

3. the multiplied portion of any multiplied damage award;

4. the return, reduction, refund or disgorgement of profits, fees, charges, commissions, or royalties; or

5. any amount or matter deemed uninsurable under applicable law.

3. **Wrongful Act** means any actual or alleged act, error, omission, misstatement, misleading statement, neglect, or breach of duty committed by an **Insured** in the performance of or failure to perform **Technology Services** for others for a fee, or in the design, manufacture, sale, lease or distribution of **Technology Products** for or to others for a fee.
4. **Technology Services** means computer or electronic information technology services performed by or on behalf of an **Insured** for others for a fee or other remuneration. Technology Services include, but are not limited to: analysis, design, or development of computer software or systems; website or app design; systems or network integration; data conversion or data processing; data storage, hosting or cloud services (including software as a service); IT consulting, tech support, or network security services; computer programming or coding; computer system installation, maintenance, or repair; and other information technology services.
5. **Technology Products** means any computer or telecommunications hardware or software products, or related electronic components or peripherals, that are created, developed, manufactured, sold, licensed, leased, or distributed by an **Insured** for a fee or other consideration, including any software updates, service packs, or other maintenance releases for such products.
6. **Insured** means any **Organization** or **Insured Person**.
7. **Insured Person** means any natural person who is or was:
    1. an **Executive**;
    2. an **Employee**; or
    3. an independent contractor working on behalf of the **Organization** in the performance of **Technology Services**, but only if acting under the **Organization**'s direct supervision and control.

SECTION III: LIMITATIONS OF LIABILITY AND RETENTIONS

1. **Limits of Liability:** The Limit of Liability stated in the Declarations for this Technology E&O Coverage Part is the maximum amount we will pay for all Loss arising from all Claims under this Coverage Part, including Defense Costs. The Each Claim Limit (if specified) is the most we will pay for Loss arising from any single Claim or related Claims. **All Claims arising out of the same Wrongful Act or Related Wrongful Acts will be deemed one Claim** first made on the date the earliest of such Claims was first made, or when the earliest notice of a potential claim was given, whichever is earlier. Our obligations under this Coverage Part end when the applicable Limit of Liability is exhausted by payment of Loss, and in no event shall we be liable for Loss or Defense Costs in excess of that Limit.
2. **Retention:** The Retention amount stated in the Declarations for this Coverage Part shall apply to each Claim. We shall be liable only for the Loss excess of the Retention, and the Insured shall bear Loss up to the Retention amount for each Claim. The Retention shall be applied to Defense Costs and Damages and shall be borne by the Insured uninsured and at their own risk. If a single Claim or a group of related Claims triggers more than one Coverage Part or Insuring Agreement, only one Retention (the highest applicable) shall apply to such Claim unless otherwise stated. The Retention is not part of the Limit of Liability; however, Defense Costs we incur in evaluating or determining coverage do not erode the Retention.
3. **Other Insurance:** If any Loss arising from a Claim is insured by any other valid and collectible insurance (including any other Coverage Part of this Policy or any other policy issued to the Named Insured), this Coverage Part shall apply only to the extent such Loss exceeds the coverage afforded by such other insurance, whether such other insurance is stated to be primary, contributory, excess, or contingent. This Coverage Part will not contribute with any other insurance or coverage that applies to a Claim covered hereunder.
4. **Related Claims and Split Proceedings:** If a Claim covered under this Coverage Part includes matters which are also covered under another Coverage Part of this Policy or involve both covered and uncovered allegations, we and the Insured shall use best efforts to fairly allocate Defense Costs and other Loss between covered and uncovered matters. Only Loss allocated to the covered Wrongful Acts under this Coverage Part shall erode the Limits of Liability applicable to this Coverage Part.

SECTION IV: EXCLUSIONS

We shall not be liable under this Coverage Part for any Loss or Claim:

1. **Bodily Injury/Property Damage:** based upon or arising out of any actual or alleged bodily injury, sickness, disease, mental anguish, emotional distress, or death of any person; or physical injury to, loss of use of, or destruction of any tangible property. This exclusion does not apply to a claim for purely economic loss to electronic data or software caused by a Wrongful Act in the performance of Technology Services (however, any liability for loss of or damage to data is otherwise excluded by Exclusion **e** below unless covered by endorsement).

2. **Personal Injury (Media and Privacy) Acts:** based upon or arising out of any actual or alleged: libel, slander, disparagement, defamation of character; invasion of privacy, false light, public disclosure of private facts, intrusion, or misappropriation of name or likeness; false arrest, detention or imprisonment; malicious prosecution; wrongful entry, eviction or other invasion of the right to private occupancy; or infringement of title, slogan, trademark, trade name, trade dress, copyright, or other intellectual property rights. **This exclusion shall not apply to the extent that such Claim is specifically covered under a Media Liability or Intellectual Property endorsement to this Policy.** (All media, content, and IP-related liabilities are excluded from the base coverage unless added by endorsement.)
3. **Breach of Contract / Express Warranties:** based upon or arising out of any actual or alleged breach of contract, warranty, guarantee, service level agreement, or promise of cost savings or performance by any Insured. This includes any Claim for liquidated damages or penalties under any contract. However, this exclusion shall **not** apply to that portion of a Claim alleging that the Insured's negligent act or omission in the performance of Technology Services or provision of Technology Products *caused* the Insured to fail to meet its contractual obligations, **and** which results in liability the Insured would have in the absence of the contract. (No coverage is provided for pure breach of contract claims, nor for any express guarantees of performance, except as specifically endorsed.)
4. **Refunds and Pricing Disputes:** based upon or arising out of any dispute over fees, charges, or commissions charged by the Insured, including claims for the return, restitution, reimbursement, or disgorgement of fees, profits or other funds; or any claim that the Insured charged or collected incorrect, unfair, or excessive fees, or failed to collect or pay fees or royalties. This exclusion also applies to any cost overruns, or the Insured's failure to meet cost or pricing representations or estimates, or claims of over-budget performance.
5. **Unauthorized Access/Data Breach:** based upon or arising out of any actual or alleged unauthorized access to, unauthorized use of, theft of, loss of, damage to, corruption of, inability to access, or disclosure of any data, software, or confidential or personal information, including any **Privacy Wrongful Act** or **Security Wrongful Act** (such as the introduction of malicious code, ransomware, denial of service attacks, or failure to prevent any of the foregoing). This exclusion applies to any Claim arising out of a security breach or privacy breach incident, including any failure to safeguard personal data or failure to prevent unintended propagation of malicious code. (Coverage for third-party liability arising from data breach, network security failures, or unauthorized data disclosure may be made available by endorsement, but is excluded from this base Coverage Part.)
6. **Intellectual Property:** based upon or arising out of any actual or alleged plagiarism, misappropriation of ideas, trade secrets or confidential information, or infringement of any patent, trade secret, copyright, trademark, service mark, trade name, trade dress, publicity rights or any other intellectual property or proprietary right. **This exclusion is broadly applicable** to any intellectual property claims whether asserted by individuals or entities. *(This exclusion does not apply to the extent that an Intellectual Property Liability*

endorsement is attached to the Policy to specifically provide such coverage for copyright or trademark infringement as defined therein.)

7. **Insured vs. Insured (Certain Internal Claims):** made by or on behalf of any Insured against any other Insured. This includes any Claim brought by any entity that is owned, controlled by, or under common control with an Insured, or in which any Insured owns 10% or more of the equity or debt. However, this exclusion shall not apply to: (i) any Claim for contribution or indemnity arising from a third-party Claim that is otherwise covered; or (ii) any Claim made by an Insured that is an independent contractor or client of the Named Insured, when such Claim results directly from a Wrongful Act in the performance of Technology Services for that independent contractor or client (and is not collusive in nature).
8. **Employment Practices & Employee Injury:** based upon or arising out of any wrongful employment practice, including any employment-related discrimination, harassment, retaliation, wrongful termination or other employment dispute; or any Claim by any present or former employee of the Insured arising out of injury sustained in the course of employment (other than a tech professional services wrongful act covered by this Coverage Part). This exclusion also applies to any Claim for disability discrimination or failure to accommodate, workers compensation, unemployment, OSHA violations, or any similar employment or workplace-related claim.
9. **Directors & Officers / Shareholder Actions:** based upon or arising out of any act, error, or omission by an Insured in their capacity as a director, officer, manager or trustee of the Insured organization (or as such for any other entity), or any Claim brought by or on behalf of a shareholder, partner or investor in the Insured seeking to enforce rights as an owner or stakeholder. (Such claims are generally covered, if at all, under a Directors & Officers liability coverage part, not this Professional Liability coverage.)
10. **Unfair Competition/FTC/Statutory Violations:** based upon or arising out of any actual or alleged antitrust violation, price fixing, restraint of trade, unfair competition, unfair or deceptive business practices, false or misleading advertising, or violation of any consumer protection statute (including but not limited to claims under the Telephone Consumer Protection Act (TCPA), CAN-SPAM Act, or any similar federal, state or local laws regulating unsolicited communications, do-not-call lists, consumer privacy or marketing practices). This exclusion includes any Claim alleging violations of the Federal Trade Commission Act, Sherman Act, Clayton Act, or any rules or regulations promulgated thereunder, and any other federal or state law designed to prevent anti-competitive practices or consumer fraud.
11. **Contaminants and Environmental:** based upon or arising out of the actual, alleged or threatened discharge, dispersal, release, escape, seepage, migration or infiltration of Contaminant at any time. This exclusion applies whether or not the Claim alleges negligence in testing, monitoring, remediation or failure to give warnings in connection with Contaminants.
12. **Fire, Safety or Product-Related Bodily Injury:** based upon or arising out of any design or manufacturing defect or failure of any product, equipment or device to avert or prevent: bodily injury, property damage, personal injury, or any nuclear, fire, explosion, collision or other hazard. This includes any Claim alleging that a Technology Product or

work of the Insured caused damage to any person or physical property by causing or failing to prevent any of the foregoing hazards. (This exclusion does not apply to purely financial loss or loss of use of intangible property resulting from the failure of Technology Products, which is encompassed by this Coverage Part subject to all other terms and exclusions.)

13. **Product Recall and Repair:** for the withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of any Technology Product or any product or property of others incorporating a Technology Product, or the withdrawal, re-performance or correction of any work or services performed by the Insured (including any Software, content or other deliverables provided as part of Technology Services). This exclusion applies to any costs or expenses associated with any recall, fix, or removal of products or work product from the marketplace or from use, including any related loss of use or loss of profits by any customer or third party. (Coverage for product recall or withdrawal expenses may be made available by endorsement, but is excluded from Loss under this base form.)
14. **Fraudulent, Dishonest or Criminal Acts:** based upon or arising out of any deliberate fraudulent, dishonest, criminal or malicious act, error or omission, or any knowing or intentional violation of law, by an Insured. However, **this exclusion shall not apply to Defense Costs** incurred prior to a final adjudication or admission establishing that such conduct in fact occurred, at which time the Insured shall reimburse us for any Defense Costs advanced. This exclusion does not apply to any Insured who did not personally commit, participate in, or knowingly acquiesce to the conduct (this non-imputation clause does not extend coverage to the **Organization** if a **Senior Executive** committed the excluded act). For purposes of clarity, this exclusion does not relieve the Insured of any requirement to repay Defense Costs in the event it is determined that the Insured engaged in intentionally dishonest or criminal conduct.
15. **Prior Acts / Prior Pending:** based upon or arising out of any Wrongful Act committed, or any fact, circumstance or situation that an Insured knew about (or reasonably should have known about) prior to the inception date of this Coverage Part, if such Wrongful Act or circumstance could reasonably be expected to give rise to a Claim. This includes any Claim or litigation pending or initiated against an Insured prior to the inception date of this Coverage Part, and any Claim arising out of or based upon any such prior or pending proceeding or any **Related Wrongful Acts** common to them. In addition, no coverage shall apply to any Claim arising from any Wrongful Act or circumstance that has been the subject of any notice of claim or potential claim given under any other insurance policy or coverage before the inception of this Policy.
16. **Contractual Liability (Indemnities to Others):** based upon or arising out of any liability assumed by any Insured under any contract or agreement, including hold harmless or indemnity agreements, warranties or guarantees made by an Insured, **to the extent such liability exceeds the liability the Insured would have in the absence of such contract or agreement**. This exclusion does not apply to an Insured's liability for a Wrongful Act which is independently actionable in tort absent the contract (see carveback in Exclusion **c** above). *(In no event will this Policy cover the Insured's*

agreement to be liable for another party's negligence or breaches, unless such liability would attach regardless of the contract.)

17. **Professional Services Not Covered / Other Business Activities:** based upon or arising out of the Insured's rendering or failure to render professional services that are not defined as Technology Services (or that are specifically declared in the Policy as not covered). This includes, without limitation, the performance of any medical, healthcare, legal, accounting, financial, architectural, engineering, insurance brokerage, real estate, or other professional services that are outside the scope of Technology Services. (If the Insured is engaged in any other professional services, separate Errors & Omissions coverage must be in place for those services; this Policy's Technology E&O Coverage Part applies only to the defined Technology Services and Technology Products.)
18. **Governmental Orders and Regulations:** based upon or arising out of any order, decree or regulatory directive by any governmental or regulatory authority, including any requirement to modify, cease, or recall any Technology Product or service, or to pay fines or penalties (except to the extent that Defense Costs for certain regulatory proceedings may be provided by endorsement). This exclusion also includes any costs of compliance with injunctive or non-monetary relief. (Defense of regulatory investigations or subpoena compliance may be provided by separate endorsement; otherwise such costs and regulatory matters are excluded.)

All other terms, conditions, and exclusions of the Policy remain applicable. The above exclusions apply regardless of the legal theory pled (e.g. whether sounding in contract, tort, statute, or any other theory) and to any Claim for injunctive relief, monetary damages, restitution, or any other form of relief.

SECTION V: NOTICES AND CONDITIONS

1. **Claims Made and Related Claims:** This Coverage Part is provided on a claims-made basis. Coverage applies only to Claims first made against the Insured during the Policy Period (or any Extended Reporting Period, if applicable). As a condition precedent to coverage, the Insured must provide written notice of any Claim to us as specified in paragraph 2. below. Multiple Claims arising from the same Wrongful Act or **Related Wrongful Acts** shall be deemed a single Claim first made on the date of the earliest such Claim, and only one Limit of Liability and one Retention shall apply as provided in Section III. If notice of a potential Claim (circumstance) is accepted by us during the Policy Period, then any Claim subsequently arising from the reported circumstance shall be deemed first made during the Policy Period in which the circumstance was reported.
2. **Notice of Claims or Circumstances:** The Insured shall, as a condition of coverage, give written notice to the Company of any Claim made against any Insured as soon as practicable, but in no event later than any notice deadline specified in the General Policy Conditions or Declarations. Notice shall include details sufficient to identify the Insured and claimant, and all reasonably obtainable information about the time, place, and circumstances of the Wrongful Act and the nature of the Claim, as well as copies of any demands, lawsuits, or written communications received. If during the Policy Period an

Insured becomes aware of any specific circumstance that could reasonably be expected to give rise to a Claim, the Insured may provide written notice of such circumstance to the Company with full particulars, prior to the end of the Policy Period. In that event, any Claim subsequently arising from such reported circumstance shall be deemed to be a Claim first made during this Policy Period. All notices shall be sent to the address designated in the Policy for claims notice.

3. **Defense and Settlement:** We have the right and duty to defend any Claim covered by this Coverage Part, even if any of the allegations are groundless, false or fraudulent. The Insured shall not admit liability, incur any Defense Costs, assume any obligation, enter into any settlement, or take any action that could prejudice our rights, without our prior written consent (such consent not to be unreasonably withheld). We shall have the right to make any investigation we deem necessary and to appoint counsel of our choice (after consultation with the Insured) to defend the Claim. The Insured has the right, at their own expense, to associate in the defense with counsel of their choice, but we shall control the defense unless and until we tender the remaining policy limits. We may, with the written consent of the Insured, settle any Claim as we deem expedient. If the Insured refuses to consent to a settlement demand that is acceptable to the claimant and to us, our liability for Loss on that Claim shall not exceed the amount for which the Claim could have been settled (including Defense Costs incurred up to the date of the Insured's refusal) plus 50% of covered Loss (including Defense Costs) incurred thereafter. The remaining 50% of such subsequent Loss shall be borne by the Insured uninsured. (This is commonly referred to as the "hammer clause.") In such event, we shall have the right to withdraw from the further defense of the Claim by tendering control of the defense to the Insured, and the Insured agrees to assume all future Defense Costs and defense of the Claim at their own expense.
4. **Insured's Duty to Cooperate:** The Insureds shall cooperate with us and with any appointed defense counsel in the investigation, defense, settlement, or appeal of any Claim. Upon our request, the Insured shall assist in the securing and giving of evidence, attending hearings, depositions and trials, and obtaining the attendance of witnesses. The Insured shall also assist in effecting any rights of contribution or subrogation, including executing any necessary papers. The Insured agrees to do nothing that may prejudice our position or rights of recovery. Any Insured, as often as may be reasonably required, shall submit to examination by us under oath and shall provide written statements, verify answers to questions, and produce documents pertaining to the Claim. The Insureds will enforce any contractual rights to indemnity or contribution in the Insured's favor, and hold in trust for us any sums obtained, to reimburse us to the extent we have paid any Loss.
5. **Subrogation:** In the event of any payment under this Coverage Part, we shall be subrogated to the rights of the Insured against any person or entity who may be liable to the Insured for such Loss. The Insured agrees to execute all papers required and do everything necessary to secure and preserve such subrogation rights, including the execution of any documents necessary for us to bring suit in the name of the Insured. We will not subrogate against any person or entity who is an Insured under this Policy unless the Claim against that Insured arose from their fraudulent, dishonest, criminal or

malicious acts (as established by final adjudication). **Any recoveries** (after deducting the costs and expenses incurred in obtaining such recovery) shall be applied first to subrogation expenses, second to Loss paid by us, and lastly to the Retention (if unreimbursed by the Named Insured). Any remainder shall be paid to the Insured.

6. **Extended Reporting Period:** If and to the extent an Extended Reporting Period (ERP) option is offered under the General Policy Conditions (such as in the event of cancellation or non-renewal of this Policy), the Named Insured may elect to purchase an ERP for this Coverage Part as described therein. During any ERP, coverage under this Coverage Part shall apply to Claims first made against the Insured and reported to us during the ERP, but only with respect to Wrongful Acts that occurred before the end of the Policy Period and otherwise subject to all terms, conditions and exclusions of this Coverage Part. The ERP is not a new policy and does not increase or reinstate any Limits of Liability – it simply extends the time in which a Claim may be reported for Wrongful Acts occurring prior to policy expiration. All notices or premium payments with respect to an ERP must be made in accordance with the general policy conditions regarding Extended Reporting Period.
7. **Other Conditions:** This Coverage Part is subject to all terms and conditions of the general Policy, including representations and severability provisions in the application, territory, cancellation/non-renewal, and dispute resolution provisions, except as specifically modified herein. In no event shall any changes to or waiver of any terms of this Coverage Part be effective unless made by written endorsement issued by the Company. If any provision of this Coverage Part is found to be unenforceable or void, it shall not invalidate the remaining provisions. The titles and headings in this Coverage Part are for reference only and shall not be considered in interpreting coverage.
8. **Conformance with Law:** Any terms of this Coverage Part that conflict with the laws of any jurisdiction wherein this Policy is issued or coverage is provided are hereby amended to conform to such laws. In states where the insurer is prohibited from defending certain claims (such as certain statutory violations), the Company will reimburse Defense Costs to the extent permitted by law.